

308	<i>Rodriguez vs. Parker</i>	CMC
309	<i>Craik vs. Placentia-Yorba Linda Unified School District</i>	CMC
311	<i>Pendergist vs. Ramirez</i>	CMC
312	<i>Christiansen vs. Arellano</i>	CMC
313	<i>Van Der Hoeven vs. Qazi Cosmetic Clinic</i>	
314	<i>Spears vs. The Horizons Community Association</i>	
315	<i>Nguyen vs. Carrington Mortgage Services, LLC</i>	Defendant Carrington Mortgage Services, LLC's motion to compel arbitration is GRANTED. (See 9 U.S.C. § 2, Code of Civ. Proc. § 1281.2.) Plaintiff Mary Nguyen shall submit her claims against Defendant to binding arbitration pursuant to their agreement. This action is stayed pending completion of arbitration. (See 9 U.S.C. § 3; Code of Civ. Proc. § 1281.4.) Defendant's evidentiary objections to the declarations of Mary Nguyen and Richard Domnanovits are SUSTAINED in their entirety, based on relevance. The Federal Arbitration Act governs the arbitration agreement at issue. (See 9 U.S.C. § 2; <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 355 [the FAA applies if it is so stated in the agreement]; see also Declaration of Deanne Johnson ("Johnson Decl."), Ex. A at ¶ 14.) When deciding whether a valid arbitration

		agreement exists under the FAA, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) Defendant met its burden to show a written arbitration agreement exists between the parties. (See <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 [burden]; Johnson Decl., Ex. A; see also declaration of Marnetta Griffin ¶¶ 4-6, Ex. B.) Plaintiff failed to meet her shifted burden the arbitration agreement is unenforceable, including showing the agreement is both procedurally and substantively unconscionable. (<i>Serafin v. Balco Properties, Ltd., LLC</i> (2015) 235 Cal.App.4th 165, 178 [unconscionability standard].) Plaintiff’s request for limited discovery regarding arbitrability issues is DENIED. Defendant shall give notice.
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